

26CMCV01203 26CMCV01203

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-08

Motion: PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S ANSWER

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Case Number: 26CMCV01203 Hearing Date: September 8, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

WSAV ARTESIA OWNER IX, L.P,

Plaintiff,

vs.

QUALITY

SERVICE TRUCKING, INC.,

Defendant.

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CASE NO: 26CMCV01203

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S ANSWER

Dept.

A

DATE:

September 8, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 07/02/2026

TRIAL:

None set

MOVING

PARTY: Plaintiff WSAV Artesia

Owner IX, L.P.

RESPONDING

PARTY: None

1. Background

This is an unlawful detainer action. Plaintiff WSAV Artesia Owner IX, L.P. ("Plaintiff") alleges that it is the owner of the property located at 1217 West Artesia, Compton, California 90220 (the "Property"). Plaintiff alleges that on December 17, 2025, it leased the Property to defendant Quality Service Trucking, Inc. ("Defendant"). Plaintiff alleges that in March 2026, Defendant failed to pay rent as required by the lease agreement, and continued to fail to pay rent or quit the Property despite service of a notice to pay rent or quit.

2. Request for Judicial Notice

Plaintiff

requests that the court take judicial notice of Defendant's answer in this action; Defendant's documents on file with the California Secretary of State; and the search results for "Alfredo Zeyala" on the State Bar of California's Attorney Search website.

Pursuant to

California Evidence Code 452, subd. (c), judicial notice may be taken of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Judicial notice may also be taken of records of any court of this state. (Id., subd. (d).)

The court

takes judicial notice of Defendant's answer in this action and of Defendant's documents on file with the California Secretary of State. The court declines to take judicial notice of the search results for "Alfredo Zeyala" on the State Bar of California's Attorney Search website.

3. Discussion

Plaintiff

moves to strike Defendant's answer as having been filed by an unrepresented corporation and not having been served upon Plaintiff. Defendant does not oppose this motion.

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

A corporation

may not represent itself through a non-attorney agent in an action. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 730.)

Here, Defendant is a corporation, according to the documents filed by Defendant with the California Secretary of State. Defendant's answer was filed by Alfredo Zeyala or Alfredo Zelaya, who did not provide a state bar number or a firm name, nor did he state that he was an attorney for any party. Additionally, attorney Rachel A. Youkhehpaz declared that she contacted Defendant's former counsel on August 6, 2026, who informed her that they no longer represented Defendant. (Youkhehpaz Decl., Ex. A.) Based on this, it appears to the court that Defendant filed its answer as an unrepresented corporation, which is impermissible. The court will therefore grant Defendant's motion to strike Defendant's answer.

4. Conclusion

Based on the foregoing, the court GRANTS Plaintiff's motion to strike the answer.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: September 8, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court